



Legal Ethics Notes Outline: Code of Professional Responsibility

A. CODE OF PROFESSIONAL RESPONSIBILITY

ANON 1 - A LAWYER SHALL UPHOLD THE CONSTITUTION, OBEY THE LAWS OF THE LAND AND PROMOTE RESPECT FOR LAW OF AND LEGAL PROCESSES.

Rule 1.01 - A lawyer shall not engage in unlawful, dishonest, immoral or deceitful conduct.

Rule 1.02 - A lawyer shall not counsel or abet activities aimed at defiance of the law or at lessening confidence in the legal system.

Rule 1.03 - A lawyer shall not, for any corrupt motive or interest, encourage any suit or proceeding or delay any man's cause.

Rule 1.04 - A lawyer shall encourage his clients to avoid, end or settle a controversy if it will admit of a fair settlement.

CANON 2 - A LAWYER SHALL MAKE HIS LEGAL SERVICES AVAILABLE IN AN EFFICIENT AND CONVENIENT MANNER COMPATIBLE WITH THE INDEPENDENCE, INTEGRITY AND EFFECTIVENESS OF THE PROFESSION.

Rule 2.01 - A lawyer shall not reject, except for valid reasons, the cause of the defenseless or the oppressed.

Rule 2.02 - In such cases, even if the lawyer does not accept a case, he shall not refuse to render legal advice to the person concerned if only to the extent necessary to safeguard the latter's rights.

Rule 2.03 - A lawyer shall not do or permit to be done any act designed primarily to solicit legal business.

Rule 2.04 - A lawyer shall not charge rates lower than those customarily prescribed unless the

circumstances so warrant.

B. CASES (AS TO RELEVANCE)

1) CANON 1

a) Rule 1.01

i) Spouses Yu vs. Atty. Palaña, July 14, 2008

FACTS:

Ø Mr. Mark Anthony U. Uy who introduced himself as the Division Manager of Wealth Marketing and General Services Corporation engaged in spot currency trading.

Ø Mr. Uy persuaded the complainants to invest a minimum amount of P100,000.00 or its dollar equivalent. Wealth Marketing's promises were false and fraudulent, and that the checks earlier issued were dishonored for the reason "account closed." It had already ceased its operation and a new corporation was formed named Ur-Link Corporation which supposedly assumed the rights and obligations of the former.

Ø As Wealth Marketing's Chairman of the Board of Directors, respondent assured the complainants that Ur-Link would assume the obligations of the former company. Respondent signed an Agreement to that effect which, again, turned out to be another ploy to further deceive the investors.

Ø complainants lodged a criminal complaint for syndicated estafa against the respondent and his co-accused.

Ø Despite the standing warrant for his arrest, respondent went into hiding and has been successful in defying the law, to this date.

Ø In an Order dated November 17, 2006, Director for Bar Discipline required respondent to submit his Answer to the complaint but the latter failed to comply. Respondent was thereafter declared in default and the case was heard ex parte.

Ø Commissioner recommended that respondent be disbarred from the practice of law.

ISSUE: W/N Mr. Uy should be disbarred.

HELD:

YES.

Ø Lawyers

instruments in the administration of justice

expected to maintain not only legal proficiency but also a high standard of morality, honesty, integrity and fair dealing.

may be disciplined whether in their professional or in their private capacity for any conduct that is wanting in morality, honesty, probity and good demeanor.

Ø Respondent, being a member of the bar, should note that administrative cases against lawyers belong to a class of their own. They are distinct from and they may proceed independently of criminal cases.

Ø Section 27, Rule 138 of the Rules of Court provides:

A member of the bar may be disbarred or suspended from his office as attorney by the Supreme Court for any deceit, malpractice, or other gross misconduct in such office, grossly immoral conduct, or by reason of his conviction of a crime involving moral turpitude, or for any violation of the oath which he is required to take before admission to practice, or for a willful disobedience of any lawful order of a superior court, or for corruptly or willfully appearing as an attorney for a party to a case without authority to do so. x x x.

Ø power to disbar must always be exercised with great caution for only the most imperative reasons and in clear cases of misconduct affecting the standing and moral character of the lawyer as an officer of the court and a member of the bar.

Ø The Court notes that this is not the first time that respondent is facing an administrative case, for he had been previously suspended from the practice of law in *Samala v. Palaña and Sps. Amador and Rosita Tejada v. Palaña*. In *Samala*, respondent also played an important role in a corporation known as First Imperial Resources Incorporated, being its legal officer.

Ø Respondent meted the penalty of suspension for 3 years with a warning that a repetition of the same or similar acts would be dealt with more severely. Likewise, in *Tejada*, he was suspended for 6 months for his continued refusal to settle his loan obligations.

Ø The fact that respondent went into hiding in order to avoid service upon him of the warrant of arrest issued by the court (where his criminal case is pending) exacerbates his offense.

Ø Finally, we note that respondent's case is further highlighted by his lack of regard for the charges brought against him. His disobedience to the IBP is in reality a gross, blatant and unpardonable disrespect of the Court.

Ø The contumacious behaviour of respondent in the instant case which grossly degrades the legal profession indeed warrants the imposition of a much graver penalty --- disbarment.

ii) *Samala vs. Atty. Palaña*, AC No. 6395, April 15, 2005

ADM. CASE No. 6595. April 15, 2005. AZCUNA, J.

FACTS:

Ø complainant was looking for a company where he could invest his dollar savings. He met Raymond Taino, a trader-employee of First Imperial Resources, Inc. (FIRI), a company located at Legaspi Village, Makati City. Taino introduced him to FIRI Manager Jun Agustin, Chief Trader Diosdado Bernal, and Legal Officer Antonuitti K. Palaña, the respondent herein.

Ø Respondent assured him that through FIRI he would be directly putting his investment with Eastern Vanguard Forex Limited, a reputable company based in the Virgin Islands which has been in the foreign exchange business for 13 years.

Ø Subsequently, complainant decided to pull out his investment. He sent FIRI a letter requesting the withdrawal of his investment amounting to US\$10,000 and giving FIRI 10 days to prepare the money.

Ø On April 15, 2001, complainant asked Agustin when his money would be returned. Agustin

told him that the request was sent to Thomas Yiu of Eastern Vanguard at Ortigas Center. Yiu was surprised when he saw the documents involving complainant's investment. On the same day, in the presence of respondent, Agustin delivered to complainant a check in the amount of P574,045.09, as the peso equivalent of complainant's investment with FIRI. The said check was dishonored because it was drawn against insufficient funds.

Ø On June 1, 2001, respondent, as legal officer of FIRI, gave complainant P250,000 in cash and a check in the amount of P329,045.09. The check was dishonored because it was drawn against insufficient funds.

Ø complainant charged Paul Desiderio of Estafa and Violation of Batas Pambansa Bilang 22 at the Prosecutor's Office of Makati. a warrant of arrest was issued against Paul Desiderio.

Ø Complainant alleged that respondent's act of representing himself to be the legal officer of FIRI and his assurance that the check he personally delivered to him was signed in his presence by FIRI Officer Paul Desiderio, when no such person appears to exist, is clearly fraudulent and violative of the Canons of Professional Ethics.

Ø Complainant requested the Integrated Bar of the Philippines for a thorough investigation of respondent as a member of the bar.

Ø Commissioner Navarro thus recommended that respondent be suspended from the practice of law for 6 months.

Ø Board of Governors of the IBP adopted and approved the Report and Recommendation of the Investigating Commissioner with the modification that respondent should be suspended from the practice of law for 3 years.

ISSUE: W/N the respondent should be penalized according to the Code of Professional Responsibility.

HELD: Atty. Antonuitti K. Palaña is found GUILTY of violating Rule 7.03 of the Code of Professional Responsibility and hereby suspended from the practice of law for a period of three (3) years effective from receipt of this Resolution, with a warning that a repetition of the same or similar acts will be dealt with more severely.

YES.

Ø Respondent was found to have violated Rule 7.03 of Canon 7 of the Code of Professional Responsibility, which states:

Rule 7.03 – A lawyer shall not engage in conduct that adversely reflects on his fitness to practice law, nor shall he, whether in public or private life, behave in a scandalous manner to the discredit of the legal profession.

Ø FIRI prohibited it from engaging in investment or foreign exchange business and its primary purpose is "to act as consultant in providing professional expertise and reliable data analysis related to partnership and so on."

Ø Hence, it is clear that the representations of respondent as legal officer of FIRI caused material damage to complainant. In so doing, respondent failed to uphold the integrity and

dignity of the legal profession and lessened the confidence of the public in the honesty and integrity of the same.

iii) Spouses Amador vs. Atty. Palaña, AC No. 7434 April 15, 2005
JR., JJ.

FACTS:

Ø Petitioners-spouses Rosita and Amador Tejada filed a Complaint Affidavit before the Integrated Bar of the Philippines (IBP) to initiate disbarment proceedings against respondent Atty. Antoniutti K. Palaña for his continued refusal to settle his long overdue loan obligation to the complainants, in violation of his sworn duty as a lawyer to do justice to every man and Rule 7.03 of Canon 7 of the Code of Professional Responsibility

Ø It turned out that all his assurances that he had a torrens title, he will reconstitute the same and deliver an amount of P170,000.00 to petitioner spouses were all fraudulent representations on his part or else were only fictitious in character to defraud petitioner spouses of their hard owned monies

Ø Despite due notice, respondent failed to file his answer to the complaint as required by the Commission on Bar Discipline of the IBP. Respondent likewise failed to appear on the scheduled date of the mandatory conference despite due notice.

Ø Investigating Commissioner recommended respondent's suspension from the practice of law for 3 months.

ISSUE: W/N respondent should be penalized according to the Code of Responsibility.

HELD: Antoniutti K. Palaña is SUSPENDED from the practice of law for a period of 6 months.
YES.

Ø Membership in the bar is a privilege burdened with conditions. A high sense of morality, honesty, and fair dealing is expected and required of a member of the bar.

Ø strength of the legal profession lies in the dignity and integrity of its members.

Ø In the instant case, respondent's unjustified withholding of petitioners' money years after it became due and demandable demonstrates his lack of integrity and fairness, and this is further highlighted by his lack of regard for the charges brought against him. Instead of meeting the charges head on, respondent did not bother to file an answer nor did he participate in the proceedings to offer a valid explanation for his conduct.

Ø respondent's acts, which violated the Lawyer's Oath "to delay no man for money or malice" as well as the Code of Professional Responsibility, warrant the imposition of disciplinary sanctions against him.

Ø It is clear that he employed deceit in convincing complainants to part with their hard earned money and the latter could not have been easily swayed to lend the money were it not for his misrepresentations and failed promises as a member of the bar.

Ø Failing in this duty as a member of the bar which is being supervised by the Court under the Constitution, we find that a heavier sanction should fall on respondent.

iv) Guevara vs. Atty. Eala, AC No. 7136, Aug 1, 2007
PUNO, C.J.

FACTS:

Ø After his marriage to Irene, complainant noticed that Irene had been receiving from respondent cellphone calls, as well as messages some of which read “I love you,” “I miss you,” or “Meet you at Megamall.”

Ø Complainant also noticed that Irene habitually went home very late at night or early in the morning of the following day, and sometimes did not go home from work. When he asked about her whereabouts, she replied that she slept at her parents’ house in Binangonan, Rizal or she was busy with her work. Complainant saw Irene and respondent together on two occasions. On the second occasion, he confronted them following which Irene abandoned the conjugal house. Irene was already residing and she was pregnant

Ø The Commissioner recommended that respondent be disbarred for violating Rule 1.01 of Canon 1 of the Code of Professional Responsibility

Ø The IBP Board of Governors annulled and set aside the Recommendation by Resolution XVII-2006-06 CBD Case No. 02-936

ISSUE: W/N Respondent is should be disbarred.

HELD: Respondent, Atty. Jose Emmanuel M. Eala, is DISBARRED for grossly immoral conduct, violation of his oath of office, and violation of Canon 1, Rule 1.01 and Canon 7, Rule 7.03 of the Code of Professional Responsibility.

YES.

Ø Administrative cases against lawyers belong to a class of their own. They are distinct from and they may proceed independently of civil and criminal cases.

Ø In a criminal case, proof beyond reasonable doubt is necessary; in an administrative case for disbarment or suspension, “clearly preponderant evidence” is all that is required.

Ø As a lawyer, respondent should be aware that a man and a woman deporting themselves as husband and wife are presumed, unless proven otherwise, to have entered into a lawful contract of marriage. In carrying on an extra-marital affair with Irene prior to the judicial declaration that her marriage with complainant was null and void, and despite respondent himself being married, he showed disrespect for an institution held sacred by the law.

Ø their illicit affair that was carried out there bore fruit a few months later when Moje gave birth to a girl

Ø It bears emphasis that adultery is a private offense which cannot be prosecuted de oficio and thus leaves the DOJ no choice but to grant complainant’s motion to withdraw his petition for

review. But even if respondent and Irene were to be acquitted of adultery after trial, if the Information for adultery were filed in court, the same would not have been a bar to the present administrative complaint.

v) Advincula vs. Atty. Macabata, AC No. 7204, March 7, 2007
CHICO-NAZARIO, J.

FACTS:

Ø complainant Cynthia Advincula sought the legal advice of the respondent Atty. Macabata, regarding her collectibles from Queensway Travel and Tours.

Ø After their dinner, respondent sent complainant home and while she is about to step out of the car, respondent hold her arm and kissed her on the cheek and embraced her very tightly.

Ø After the meeting at Starbucks coffee shop in West Avenue, Quezon City, respondent offered again a ride, which he usually did every time they met. When she was almost restless respondent stopped his car and forcefully hold her face and kissed her lips while the other hand was holding her breast. Complainant even in a state of shocked succeeded in resisting his criminal attempt and immediately manage to go out of the car.

Ø In the late afternoon, complainant sent a text message to respondent informing him that she decided to refer the case with another lawyer and needs to get back the case folder from him.

Ø Respondent replied "talk to my lawyer in due time." Then another message was received by her at 4:06:33 pm saying "Ano k ba. I'm really sri. Pls. Nxt ime bhav n me." (Ano ka ba. I'm really sorry. Please next time behave na ko), which is a clear manifestation of admission of guilt.

Ø By way of defense, respondent further elucidated that:

there was a criminal case for Acts of Lasciviousness filed by complainant against respondent pending

legal name of complainant is Cynthia Advincula Toriana since she remains married to a certain Jinky Toriana

complainant was living with a man not her husband

complainant never bothered to discuss respondent's fees and it was respondent who always paid for their bills every time they met and ate at a restaurant.

Ø Commissioner recommended the imposition of the penalty of 1 month suspension on respondent for violation of the Code of Professional Responsibility.

Ø IBP passed Resolution No. XVII-2006-117, approving and adopting, with modification that Atty. Ernesto A. Macabata is SUSPENDED from the practice of law for 3 months

ISSUE: whether respondent committed acts that are grossly immoral or which constitute serious moral depravity that would warrant his disbarment or suspension from the practice of law.

HELD: Atty. Ernesto Macabata, for alleged immorality, is DISMISSED. However, REPRIMANDED with a STERN WARNING.

NO.

Ø Moral character is not a subjective term but one which corresponds to objective reality.

Ø requirement of good moral character has 4 ostensible purposes:

to protect the public

to protect the public image of lawyers

to protect prospective clients

to protect errant lawyers from themselves.

Ø It is difficult to state with precision and to fix an inflexible standard as to what is "grossly immoral conduct" or to specify the moral delinquency and obliquity which render a lawyer unworthy of continuing as a member of the bar. The rule implies that what appears to be unconventional behavior to the straight-laced may not be the immoral conduct that warrants disbarment

Ø Zaguirre v. Castillo:

definition of immoral conduct

- o conduct which is so willful, flagrant, or shameless as to show indifference to the opinion of good and respectable members of the community.

- o must not simply be immoral, but grossly immoral.

- o must be so corrupt as to constitute a criminal act, or so unprincipled as to be reprehensible to a high degree or committed under such scandalous or revolting circumstances as to shock the common sense of decency.

Ø In the case at bar, complainant miserably failed to comply with the burden of proof required of her. A mere charge or allegation of wrongdoing does not suffice.

Ø Moreover, while respondent admitted having kissed complainant on the lips, the same was not motivated by malice. We come to this conclusion because right after the complainant expressed her annoyance at being kissed by the respondent through a cellular phone text message, respondent immediately extended an apology to complainant also via cellular phone text message.

Ø Be it noted also that the incident happened in a place where there were several people in the vicinity considering that Roosevelt Avenue is a major jeepney route for 24 hours. If respondent truly had malicious designs on complainant, he could have brought her to a private place or a more remote place where he could freely accomplish the same.

Ø All told, as shown by the above circumstances, respondent's acts are not grossly immoral nor highly reprehensible to warrant disbarment or suspension.

Ø The power to disbar or suspend ought always to be exercised on the preservative and not on the vindictive principle, with great caution and only for the most weighty reasons and only on clear cases of misconduct which seriously affect the standing and character of the lawyer as an

officer of the court and member of the Bar. Only those acts which cause loss of moral character should merit disbarment or suspension, while those acts which neither affect nor erode the moral character of the lawyer should only justify a lesser sanction unless they are of such nature and to such extent as to clearly show the lawyer's unfitness to continue in the practice of law. The dubious character of the act charged as well as the motivation which induced the lawyer to commit it must be clearly demonstrated before suspension or disbarment is meted out. The mitigating or aggravating circumstances that attended the commission of the offense should also be considered.

Ø Based on the circumstances of the case as discussed and considering that this is respondent's first offense, reprimand would suffice.

Ø it was difficult and agonizing on complainant's part to come out in the open and accuse her lawyer of gross immoral conduct. However, her own assessment of the incidents is highly subjective and partial, and surely needs to be corroborated or supported by more objective evidence.

vi) Heirs of the Late Spouses Lucas vs. Atty. Beradio, AC No. 6270, Jan. 22, 2007
CARPIO, J.

FACTS:

Ø During their lifetime, the spouses Villanueva acquired several parcels of land in Pangasinan. Their 5 children, Simeona, Susana, Maria, Alfonso, and Florencia, survived them.

Ø Alfonso executed an Affidavit of Adjudication stating that as "the only surviving son and sole heirs" of the spouses Villanueva. Alfonso then executed a Deed of Absolute Sale, conveying the property to Adriano Villanueva. Respondent appeared as notary public on both the affidavit of adjudication and the deed of sale.

Ø Contrary to the misrepresentations of Alfonso, his sister Florencia was still alive at the time he executed the affidavit of adjudication and the deed of sale, as were descendants of the other children of the spouses Villanueva. Complainants claimed that respondent was aware of this fact, as respondent had been their neighbor in Balungao, Pangasinan, from the time of their birth, and respondent constantly mingled with their family. Complainants accused respondent of knowing the "true facts and surrounding circumstances" regarding the properties of the spouses Villanueva, yet conspiring with Alfonso to deprive his co-heirs of their rightful shares in the property.

Ø Commissioner Villadolid found that respondent violated the provisions of the Code of Professional Responsibility and the spirit and intent of the notarial law when she notarized the affidavit knowing that Alfonso was not the sole compulsory heir of the spouses Villanueva. It was recommended that respondent be reprimanded or suspended from the practice of law for up to 6 months.

ISSUE: W/N respondent should be suspended for his actions.

HELD: REVOKE the commission as Notary Public, if still existing, and DISQUALIFY from being commissioned a notary public for 1 year. SUSPEND from the practice of law for 6 months.

YES.

Ø notary public is empowered to perform a variety of notarial acts, most common of which are the acknowledgment and affirmation of a document or instrument. In the performance of such notarial acts, the notary public must be mindful of the significance of the notarial seal as affixed on a document. The notarial seal converts the document from private to public, after which it may be presented as evidence without need for proof of its genuineness and due execution.

Ø By this instrument, Alfonso claimed a portion of his parents' estate all to himself, to the exclusion of his co-heirs. Shortly afterwards, respondent notarized the deed of sale, knowing that the deed took basis from the unlawful affidavit of adjudication.

Ø Respondent never disputed complainants' allegation of her close relationship with the Villanueva family spanning several decades. Respondent even underscored this closeness by claiming that Lucas himself requested her to come to his house the day Lucas handed to Alfonso a copy of OCT No. 2522, allegedly so she could hear the conversation between them.

Ø Where admittedly the notary public has personal knowledge of a false statement or information contained in the instrument to be notarized, yet proceeds to affix his or her notarial seal on it, the Court must not hesitate to discipline the notary public accordingly as the circumstances of the case may dictate. Otherwise, the integrity and sanctity of the notarization process may be undermined and public confidence on notarial documents diminished.

Ø In this case, respondent's conduct amounted to a breach of Canon 1 of the Code of Professional Responsibility, which requires lawyers to obey the laws of the land and promote respect for the law and legal processes. Respondent also violated Rule 1.01 of the Code which proscribes lawyers from engaging in unlawful, dishonest, immoral, or deceitful conduct.

Ø We also view with disfavor respondent's lack of candor before the IBP proceedings. The transcript of hearings shows that respondent denied preparing or notarizing the deed of sale, when she already admitted having done so in her Comment.

vii) Samala vs. Atty. Valencia, AC 5439, Jan. 22, 2007

AUSTRIA-MARTINEZ, J.

FACTS:

Ø Complainant Clarita J. Samala filed against Atty. Luciano D. Valencia for Disbarment on the following grounds:

serving on 2 separate occasions as counsel for contending parties

knowingly misleading the court by submitting false documentary evidence

initiating numerous cases in exchange for nonpayment of rental fees

having a reputation of being immoral by siring illegitimate children.

Ø Commissioner found respondent guilty of violating Canons 15 and 21 of the Code of Professional Responsibility and recommended the penalty of suspension for 6 months.

Ø IBP Board of Governors adopted and approved the report and recommendation of Commissioner Reyes but increased the penalty of suspension from 6 months to 1 year.

ISSUE: W/N respondent should be suspended.

HELD: respondent Atty. Luciano D. Valencia GUILTY of misconduct and violation of Canons 21, 10 and 1 of the Code of Professional Responsibility. SUSPENDED for 3 years.

YES.

Ø In Civil Case No. 98-6804 filed in the Metropolitan Trial Court entitled "Editha S. Valdez and Joseph J. Alba, Jr. v. Salve Bustamante and her husband" for ejectment, respondent represented Valdez against Bustamante, 1 of the tenants in the property subject of the controversy. Presiding Judge warned respondent to refrain from repeating the act of being counsel of record of both parties in Civil Case No. 95-105-MK.

Ø Rule 15.03, Canon 15 of the Code of Professional Responsibility provides that a lawyer shall not represent conflicting interests except by written consent of all concerned given after a full disclosure of the facts. A lawyer may not, without being guilty of professional misconduct, act as counsel for a person whose interest conflicts with that of his present or former client. This stern rule is founded on the principles of public policy and good taste. One of the tests of inconsistency of interests is whether the acceptance of a new relation would prevent the full discharge of the lawyer's duty of undivided fidelity and loyalty to the client or invite suspicion of unfaithfulness or double-dealing in the performance of that duty.

Ø Canon 21 of the Code of Professional Responsibility "a lawyer shall preserve the confidences and secrets of his client even after the attorney-client relation is terminated."

Ø respondent's representation of :

Valdez and Alba against Bustamante and her husband

Valdez against Alba

is a clear case of conflict of interests which merits a corresponding sanction from this Court.

Ø Respondent may have withdrawn his representation in Civil Case No. 95-105-MK upon being warned by the court, but the same will not exculpate him from the charge of representing conflicting interests in his representation in Civil Case No. 2000-657-MK.

Ø Respondent is reminded to be more cautious in accepting professional employments, to refrain from all appearances and acts of impropriety including circumstances indicating conflict of interests, and to behave at all times with circumspection and dedication befitting a member of the Bar, especially observing candor, fairness and loyalty in all transactions with his clients.

Ø respondent cannot feign ignorance of the fact that the title he submitted was already cancelled in lieu of a new title issued in the name of Alba in 1995 yet, as proof of the latter's ownership.

Ø What is decisive in this case is respondent's intent in trying to mislead the court by presenting TCT No. 273020 despite the fact that said title was already cancelled and a new one, TCT No. 275500, was already issued in the name of Alba.

Ø The act of respondent of filing the aforementioned cases to protect the interest of his client, on one hand, and his own interest, on the other, cannot be made the basis of an administrative charge unless it can be clearly shown that the same was being done to abuse judicial processes to commit injustice.

Ø respondent liable for being immoral by siring illegitimate children.

Ø respondent admitted that he sired three children by Teresita Lagmay who are all over 20 years of age, while his first wife was still alive. He also admitted that he has eight children by his first wife, the youngest of whom is over 20 years of age, and after his wife died in 1997, he married Lagmay in 1998.

Ø In this case, the admissions made by respondent are more than enough to hold him liable on the charge of immorality. He even justified his transgression by saying that he does not have any relationship with Lagmay and despite the fact that he sired 3 children by the latter, he does not consider them as his second family

Ø Under Canon 1, Rule 1.01 of the Code of Professional Responsibility, a lawyer shall not engage in unlawful, dishonest, immoral or deceitful conduct. It may be difficult to specify the degree of moral delinquency that may qualify an act as immoral, yet, for purposes of disciplining a lawyer, immoral conduct has been defined as that "conduct which is willful, flagrant, or shameless, and which shows a moral indifference to the opinion of respectable members of the community.

viii) St. Louis University High School Faculty and Staff vs. Atty. dela Cruz, AC No. 6010, Aug. 28,2006
CHICO-NAZARIO, J.

FACTS:

Ø disbarment case filed by the Faculty members and Staff of the Saint Louis University-Laboratory High School against Atty. Rolando C. Dela Cruz, principal of SLU-LHS on the grounds that:

1. Gross Misconduct:

- a. pending criminal case for child abuse allegedly committed by him against a high school student
- b. a pending administrative case filed by the Teachers, Staff, Students and Parents before an Investigating Board created by SLU for his alleged unprofessional and unethical acts of misappropriating money supposedly for the teachers
- c. pending labor case filed by SLU-LHS Faculty before the NLRC, Cordillera Administrative

Region, on alleged illegal deduction of salary by respondent.

2. Grossly Immoral Conduct: second marriage despite the existence of his first marriage
o respondent was legally married to Teresita Rivera before Honorable Judge Tomas W. Macaranas. He subsequently married with Mary Jane Pascua before the Honorable Judge Guillermo Purganan which was subsequently annulled for being bigamous.

3. Malpractice: notarizing documents despite the expiration of his commission.

o On the charge of malpractice, complainant alleged that respondent deliberately subscribed and notarized certain legal documents on different dates from 1988 to 1997, despite expiration of respondent's notarial commission on 31 December 1987. A Certification dated 25 May 1999 was issued by the Clerk of Court of Regional Trial Court to the effect that respondent had not applied for commission as Notary Public for the period 1988 to 1997.

Ø Pacheco submitted his report and recommended that:

1. For contracting a second marriage without taking the appropriate legal steps to have the first marriage annulled first, he be suspended from the practice of law for 1 year

2. For notarizing certain legal documents despite full knowledge of the expiration of his notarial commission, he be suspended from the practice of law for another 1 year.

Ø IBP Board of Governors approved and adopted the recommendation of the Commissioner.

ISSUE: W/N respondent should be penalized for a suspension of 2 years in total.

HELD: Atty. Rolando Dela Cruz guilty of immoral conduct, in disregard of the Code of Professional Responsibility, SUSPENDED from the practice of law for a period of 2 years, and another 2 years for notarizing documents despite the expiration of his commission

Ø A member of the legal fraternity should refrain from doing any act which might lessen in any degree the confidence and trust reposed by the public in the fidelity, honesty and integrity of the legal profession. Towards this end, an attorney may be disbarred or suspended for any violation of his oath or of his duties as an attorney and counselor, which include statutory grounds enumerated in Section 27, Rule 138 of the Rules of Court, all of these being broad enough to cover practically any misconduct of a lawyer in his professional or private capacity.

Ø Equally worthy of remark is that the law profession does not prescribe a dichotomy of standards among its members. There is no distinction as to whether the transgression is committed in the lawyer's professional capacity or in his private life.

Ø One of the conditions prior to admission to the bar is that an applicant must possess good moral character. Possession of such moral character as requirement to the enjoyment of the privilege of law practice must be continuous. Otherwise, "membership in the bar may be terminated when a lawyer ceases to have good moral conduct."

Ø Respondent was already a member of the Bar when he contracted the bigamous second marriage. As such, he cannot feign ignorance.

Ø the acquittal of a lawyer in a criminal action is not determinative of an administrative case against him. So long as the quantum of proof - clear preponderance of evidence - in disciplinary

proceedings against members of the Bar is met, then liability attaches.

Ø Section 27, Rule 138 of the Rules of Court cites grossly immoral conduct as a ground for disbarment.

o Immoral conduct-conduct which is willful, flagrant, or shameless, and which shows a moral indifference to the opinion of the good and respectable members of the community

o grossly immoral- must be so corrupt and false as to constitute a criminal act or so unprincipled as to be reprehensible to a high degree

Ø In particular, he made a mockery of marriage which is a sacred institution demanding respect and dignity. His act of contracting a second marriage while the first marriage was still in place, is contrary to honesty, justice, decency and morality.

However, measured against the definition, we are not prepared to consider respondent's act as grossly immoral. This finds support in the following recommendation and observation of the IBP Investigator and IBP Board of Governors, thus:

1. After his first failed marriage and prior to his second marriage or for a period of almost 7 years, he has not been romantically involved with any woman
2. His second marriage was a show of his noble intentions and total love for his wife, whom he described to be very intelligent person
3. He never absconded from his obligations to support his wife and child
4. He never disclaimed paternity over the child and husbandry with relation to his wife
5. After the annulment of his 2nd marriage, they have parted ways when the mother and child went to Australia
6. Since then up to now, respondent remained celibate.

Ø respondent himself acknowledged and declared his abject apology for his misstep. He was humble enough to offer no defense save for his love and declaration of his commitment to his wife and child.

Ø imposition of disbarment upon him to be unduly harsh. The power to disbar must be exercised with great caution, and may be imposed only in a clear case of misconduct that seriously affects the standing and character of the lawyer as an officer of the Court. Disbarment should never be decreed where any lesser penalty could accomplish the end desired. I

Ø a penalty of 2 years suspension is more appropriate.

Ø respondent humbly admitted having notarized certain documents despite his knowledge that he no longer had authority to do so. He alleged that he received no payment in notarizing said documents.

Ø Notarization of a private document converts the document into a public one making it admissible in court without further proof of its authenticity. A notarial document is by law entitled to full faith and credit upon its face and, for this reason, notaries public must observe with the utmost care the basic requirements in the performance of their duties. Otherwise, the confidence of the public in the integrity of this form of conveyance would be undermined.

Ø The requirements for the issuance of a commission as notary public must not be treated as a mere casual formality. The Court has characterized a lawyer's act of notarizing documents without the requisite commission to do so as "reprehensible, constituting as it does not only malpractice but also x x x the crime of falsification of public documents."

Ø The Court had occasion to state that where the notarization of a document is done by a member of the Philippine Bar at a time when he has no authorization or commission to do so, the offender may be subjected to disciplinary action or one, performing a notarial act without such commission is a violation of the lawyer's oath to obey the laws, more specifically, the Notarial Law. Then, too, by making it appear that he is duly commissioned when he is not, he is, for all legal intents and purposes, indulging in deliberate falsehood, which the lawyer's oath similarly proscribes. These violations fall squarely within the prohibition of Rule 1.01 of Canon 1 of the Code of Professional Responsibility, which provides: "A lawyer shall not engage in unlawful, dishonest, immoral or deceitful conduct." By acting as a notary public without the proper commission to do so, the lawyer likewise violates Canon 7 of the same Code, which directs every lawyer to uphold at all times the integrity and dignity of the legal profession.

Ø Other charges constituting respondent's misconduct such as the pending criminal case for child abuse allegedly committed by him against a high school student filed before the Prosecutor's Office of Baguio City; the pending administrative case filed by the Teachers, Staff, Students and Parents before an Investigating Board created by SLU; and the pending labor case filed by SLU-LHS Faculty before the NLRC, Cordillera Administrative Region, on alleged illegal deduction of salary by respondent, need not be discussed, as they are still pending before the proper forums. At such stages, the presumption of innocence still prevails in favor of the respondent.

ix) *Donton vs. Atty. Tansingco*, AC No. 6057, June 27, 2006

Related Canons: Canon 1, Rules 1.01 and 1.02 of the Code of Professional Responsibility

FACTS:

- disbarment complaint against respondent Atty. Emmanuel O. Tansingco for estafa thru falsification of a public document against Duane O. Stier, a U.S. citizen and thereby disqualified to own real property in his name, as the notary public who notarized the Occupancy Agreement, recognizing Mr. Stier's free and undisturbed use of the property for his residence and business operations.

ISSUE: Whether or not respondent Atty. Emmanuel O. Tansingco should be liable for violation of Canon 1 and Rule 1.02 of the Code.

HELD: YES. GUILTY. SUSPEND for SIX MONTHS.

- Canon 1 and Rule 1.02 of the Code.

- o A lawyer should not render any service or give advice to any client which will involve defiance of the laws which he is bound to uphold and obey.

o A lawyer who assists a client in a dishonest scheme or who connives in violating the law commits an act which justifies disciplinary action against the lawyer.¹⁰

· In effect, respondent advised and aided Stier in circumventing the constitutional prohibition against foreign ownership of lands by preparing said documents.

o Respondent had sworn(oath) to uphold the Constitution.

x) Ronquillo vs. Atty.Chavez, AC No. 6288, June 16, 2006

Ronquillo vs. Atty.Chavez

FACTS:

· Atty. Homobono t. Cezar entered into a Deed of Assignment for the price of P1.5M in favor of Marili C. Ronquillo, a Filipino citizen residing in Cannes, France his rights and interests over a townhouse unit and lot and obligated himself to deliver to complainants a copy of the Contract to Sell he executed with Crown Asia, the townhouse developer

· Respondent received P750,000.00 upon execution of the Deed of Assignment and was able to encash the first check of P187,500.00

· Complainants subsequently received information from Crown Asia that respondent has not paid in full the price of the townhouse and he also failed to deliver a copy of the Contract to Sell he allegedly executed with Crown Asia.

o Complainant ordered stop payment on the second check of P187,500.00

ISSUE: Whether or not Atty. Homobono t. Cezar should be disbarred or suspended for deceit and grossly immoral conduct

HELD: YES. SUSPENDED from the practice of law for a period of 3 YEARS.

· Under Section 27, Rule 138 of the Revised Rules of Court, a member of the Bar may be disbarred or suspended on any of the following grounds: (1) deceit; (2) malpractice or other gross misconduct in office; (3) grossly immoral conduct; (4) conviction of a crime involving moral turpitude; (5) violation of the lawyer's oath; (6) willful disobedience of any lawful order of a superior court; and (7) willfully appearing as an attorney for a party without authority.

o He did not inform the complainants that he has not yet paid in full the price of the subject townhouse unit and lot, and, therefore, he had no right to sell, transfer or assign said property at the time of the execution of the Deed of Assignment.

· Respondent's adamant refusal to return to complainant Marili Ronquillo the money she paid him, which was the fruit of her labor as an Overseas Filipino Worker for 10 years, is morally reprehensible.

· Respondent failed to live up to the strict standard of morality required by the Code of Professional Responsibility and violated the trust and respect reposed in him as a member of

the Bar, and an officer of the court.

- o Lawyers must conduct themselves beyond reproach at all times, whether they are dealing with their clients or the public at large, and a violation of the high moral standards of the legal profession

- whether or not the attorney is still fit to be allowed to continue as a member of the Bar; cannot rule on the issue of the amount of money that should be returned

xi) Tomlin vs. Atty. Moya, AC No. 6971, Feb. 23, 2006

Tomlin vs. Atty. Moya

FACTS:

- Atty. Salvador N. Moya II borrowed from Quirino Tomlin II P600,000.00 partially covered by seven postdated checks which are all dishonored by the drawee bank

- o made several demands, the last being a formal letter but still failed and refused to pay his debt without justifiable reason.

- Complaint:

- o a case for seven counts of violation of B.P. Blg. 22 against the respondent before the Municipal Trial Court

- o case for respondent's disbarment

ISSUES: Whether or not Atty. Salvador N. Moya II is liable for gross misconduct and violation of the Code.

HELD: YES. GUILTY of gross misconduct and violation of the Code of Professional Responsibility and SUSPENDED from the practice of law for 2 years with a warning that any further infraction by him shall be dealt with most severely.

- good character is an essential qualification for the admission to the practice of law and for the continuance of such privilege.

- respondent admitted his monetary obligations to the complainant but offered no justifiable reason for his continued refusal to pay.

- o he refused to recognize any wrongdoing nor shown remorse for issuing worthless checks, an act constituting gross misconduct

- o As part of his duties, he must promptly pay his financial obligations.

NOTE:

- administrative cases against lawyers belong to a class of their own

- o may proceed independently of criminal cases.

- o burden of proof in a criminal case is guilt beyond reasonable doubt while in an administrative case, only preponderance of evidence is required.

xii) Soriano vs. Atty. Dizon, AC No. 6792, Jan 25, 2006

Soriano vs. Atty. Dizon

FACTS:

- Atty. Manuel Dizon was driving his brown Toyota Corolla with his wife. Along Abanao Street, a taxi driver overtook him so he tailed the taxi driver until the latter stopped to make a turn. He berated the taxi driver and held him by his shirt. To stop the aggression, the taxi driver forced open his door causing the accused to fall to the ground. Taking pity on the accused who looked elderly, the taxi driver got out of his car to help him get up. When he was about to hit the taxi driver, he hit the accused in the chest then he got up again and was about to box the taxi driver but the latter caught his fist and turned his arm around. The accused went back to his car and got his revolver making sure that the handle was wrapped in a handkerchief. The taxi driver was on his way back to his vehicle when he noticed the eyeglasses of the accused on the ground. He picked them up intending to return them to the accused. But as he was handing the same to the accused, he was met by the barrel of the gun held by the accused who fired and shot him hitting him on the neck. He fell on the thigh of the accused so the latter pushed him out and sped off.
- witness, Antonio Billanes, who came to the aid of Soriano and brought the latter to the hospital.
- o sustained a spinal cord injury, which caused paralysis on the left part of his body and disabled him for his job as a taxi driver.
- Despite positive identification and overwhelming evidence, Respondent denied that he had shot Complainant;
- Apart from [his] denial, Respondent also lied when he claimed that he was the one mauled by Complainant and two unidentified persons
- Although he has been placed on probation, Respondent has not yet (for 4 years) satisfied his civil liabilities to Complainant.
- convicted, by final judgment, of frustrated homicide

ISSUE: Whether or not frustrated homicide involves moral turpitude and where or not guilt warrants disbarment.

HELD: YES. DISBARRED.

- Moral turpitude has been defined as “everything which is done contrary to justice, modesty, or good morals; an act of baseness, vileness or depravity in the private and social duties which a man owes his fellowmen, or to society in general, contrary to justice, honesty, modesty, or good morals.”
- o Good moral character includes at least common honesty.
- Homicide may or may not involve moral turpitude depending on the degree of the crime.
- o a question of fact and frequently depends on all the surrounding circumstances

§ act of aggression shown by respondent will not be mitigated by the fact that he was hit once and his arm twisted by complainant. Under the circumstances, those were reasonable actions clearly intended to fend off the lawyer's assault.

§ He shot the victim when the latter was not in a position to defend himself.

§ To make matters worse, respondent wrapped the handle of his gun with a handkerchief so as not to leave fingerprints.

§ his illegal possession of an unlicensed firearm and his unjust refusal to satisfy his civil liabilities

- Where their misconduct outside of their professional dealings is so gross as to show them morally unfit for their office and unworthy of the privileges conferred upon them by their license and the law, the court may be justified in suspending or removing them from that office.

xiii) Po Cham vs. Atty. Pizarro, AC No. 5499, August 16, 2005

Po Cham vs. Atty. Pizarro

FACTS:

- Emelita Cañete, Elenita Alipio, and now deceased Mario Navarro, offered for sale to him a parcel of land with an area of approximately 40 hectares.

- o Respondent being extensively conversant and knowledgeable about the law took advantage of his versatility in the practice of law and committed misrepresentations

§ Respondent presented to him 1) Real Property Tax Order of Payment 2) a Deed of Absolute Sale 3) Special Power of Upon investigation

§ Deed of sale contained: The SELLERS hereby agree with the BUYER that they are the absolute owners of the rights over the said property; that they have the perfect right to convey the same

§ discovered that the property is not an alienable or disposable land susceptible of private ownership because, said lands fall within the Bataan Natural Park. Under the Public Land Law, lands within this category are not subject for disposition.

- a finding of guilt in the criminal case will not necessarily result in a finding of liability in the administrative case. Conversely, respondent's acquittal does not necessarily exculpate him administratively.

HELD: SUSPENDED from the practice of law for 1 Year and STERNLY WARNED

b) Unlawful Conduct

i) Rural Bank of Silay vs. Pilla, 350 SCRA 28

ii) Calub vs. Suller, 323 SCRA 556

- iii) Orbe vs. Adaza, AC No. 5252, May 20, 2004
- iv) Emilio Grande vs. Atty. Evangeline de Silva, AC No. 4838, July 29, 2003
- c) Immoral Conduct
 - i) Paras vs. Paras, 343 SCRA 414
 - ii) Ui vs. Bonifacio, 333 SCRA 38
 - iii) Tapucar vs. Tapucar, 293 SCRA 331
 - iv) Narag vs. Narag, 291 SCRA 451
- d) Deceit
 - i) Cordon vs. Balicanta, AC No. 2797, Oct. 4, 2002
 - ii) Rayos-Ombac vs. Rayos, 265 SCRA 83
 - iii) De los Reyes vs. Aznar, 19 SCRA 753
- e) Scandalous Conduct
 - i) Rau Sheng Mo vs. Atty. Velasco, AC No. 4881, Oct. 6, 2003
- 2) CANON 2
 - a) Rule 2.01
 - i) Canoy vs. Ortiz, 453 SCRA 410

CANON 3 - A LAWYER IN MAKING KNOWN HIS LEGAL SERVICES SHALL USE ONLY TRUE, HONEST, FAIR, DIGNIFIED AND OBJECTIVE INFORMATION OR STATEMENT OF FACTS.

Rule 3.01 - A lawyer shall not use or permit the use of any false, fraudulent, misleading, deceptive, undignified, self-laudatory or unfair statement or claim regarding his qualifications or

legal services.

Rule 3.02 - In the choice of a firm name, no false, misleading or assumed name shall be used. The continued use of the name of a deceased partner is permissible provided that the firm indicates in all its communications that said partner is deceased.

Rule 3.03 - Where a partner accepts public office, he shall withdrawal from the firm and his name shall be dropped from the firm name unless the law allows him to practice law currently.

Rule 3.04 - A lawyer shall not pay or give anything of value to representatives of the mass media in anticipation of, or in return for, publicity to attract legal business.

CANON 4 - A LAWYER SHALL PARTICIPATE IN THE DEVELOPMENT OF THE LEGAL SYSTEM BY INITIATING OR SUPPORTING EFFORTS IN LAW REFORM AND IN THE IMPROVEMENT OF THE ADMINISTRATION OF JUSTICE.

CANON 5 - A LAWYER SHALL KEEP ABREAST OF LEGAL DEVELOPMENTS, PARTICIPATE IN CONTINUING LEGAL EDUCATION PROGRAMS, SUPPORT EFFORTS TO ACHIEVE HIGH STANDARDS IN LAW SCHOOLS AS WELL AS IN THE PRACTICAL TRAINING OF LAW STUDENTS AND ASSIST IN DISSEMINATING THE LAW AND JURISPRUDENCE.

CANON 6 - THESE CANONS SHALL APPLY TO LAWYERS IN GOVERNMENT SERVICES IN THE DISCHARGE OF THEIR TASKS.

Rule 6.01 - The primary duty of a lawyer engaged in public prosecution is not to convict but to see that justice is done. The suppression of facts or the concealment of witnesses capable of establishing the innocence of the accused is highly reprehensible and is cause for disciplinary action.

Rule 6.02 - A lawyer in the government service shall not use his public position to promote or advance his private interests, nor allow the latter to interfere with his public duties.

Rule 6.03 - A lawyer shall not, after leaving government service, accept engagement or employment in connection with any matter in which he had intervened while in said service.

B. CASES

READ THE CASES ONLY INSOFAR AS THEY ARE RELEVANT TO THE ASSIGNED CANONS

1) CANON 2

Canoy vs. Ortiz, 453 SCRA 410

Tan Tek Beng vs. David, 126 SCRA 389

In re: Tagorda, 53 Phil. 37 (1929)

People vs. Holgado, 85 Phil. 752

Ulep vs. Legal Clinic 223 SCRA 378 (only as to advertising))

2) CANON 3

San Jose Homeowners Assn. v Romanillos, AC No. 5580, June 18, 2005

Atty. Ismael G. Khan, Jr. v Atty. Rizalino T. Simbillo, AC No. 5299, Aug. 10, 2002

B.R. Sebastian Enterprises Inc. vs. Court of Appeals, 206 SCRA 28

Dacanay vs. Baker & Mckenzie, Adm. Case No. 2131 May 10, 1985*

Director of Religious Affairs v. Bayot, A.C. No. L-1117, March 20, 1944*

Beltran v. Abad, A. M. No. 139 March 28, 1983*

In re Tagorda, March 23, 1929*

3) Canon 6

U.S. vs. Barredo, 32 Phil. 449, G.R. No. L-9278 December 7, 1915

Suarez vs. Platon, 69 Phil. 556

Gonzales-Austria, et al. vs. Abaya, 176 SCRA 634

Enriquez Sr. vs. Hon. Gimenez, 107 Phil. 933*

* short cases